

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

△ **Renata received a determination letter stating she is INELIGIBLE for unemployment.**

- **Estimated deadline:** 2026-07-13
- **Basis:** Minn. Stat. § 268.101, subd. 2, and § 268.105 (appeal of a determination of ineligibility to an unemployment-law judge must be filed within 45 calendar days of the date the determination was SENT; the period runs from sending and generally cannot be extended).
- **Triggering event:** served on 2026-05-29
- **Jurisdiction:** MN
- Your unemployment denial can be appealed to a state unemployment-law judge — and this is separate from any employer/HR appeal. You generally have 45 calendar days from the date the determination was SENT to file (Minn. Stat. § 268.101, subd. 2; § 268.105). This clock runs from the mailing date and usually cannot be extended, so file the appeal right away. Estimated — confirm the exact date with the court or a lawyer.

⚠ **Cedarbrook Care Center fired Renata on May 15 for attendance.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** served on 2026-05-15
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **Zofia Sikorski was admitted on May 4, 2026.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-05-04
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

⚠ **Zofia Sikorski was discharged on May 6, 2026.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2026-05-06
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
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Executive Summary

This intake identified 13 possible legal issues in Minnesota. The strongest issues include Wrongful Termination (being fired unfairly), Wrongful

Discharge in Violation of Public Policy (being fired for reasons that go against public interest), and Constructive Discharge (being forced to quit because working conditions are intolerable). There is an important deadline: Renata got a letter saying she is NOT ELIGIBLE for unemployment benefits. She needs to appeal this decision by 2026-07-13 [Minn. Stat. § 268.101, subd. 2, and § 268.105 (A person must file an appeal to an unemployment-law judge within 45 days from the date the ineligibility decision was sent; this time period usually cannot be extended.)]. The analysis is mostly complete at 76%, and there are 20 follow-up questions that could improve the evaluation.

Completeness Score: 76%

Untitled Intake

Generated: 2026-07-11 21:25 UTC

Matter ID: 230

Run ID: 63

Completeness: 76%

General

| Wrongful Discharge in Violation of Public Policy

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/>

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ISSUE

Renata's situation shows that she is a caregiver for a child with a serious medical condition (type 1 diabetes). This could bring in public policy protections (rules that protect individuals from unfair treatment) against discrimination (being treated unfairly) or negative actions related to her attendance due to her caregiving responsibilities.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Wrongful Discharge in Violation of Public Policy' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What are the necessary elements to establish a claim for wrongful discharge based on public policy protections related to caregiving?

CONCLUSION

No elements defined

| Constructive Discharge

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RsHKmukY8RoJdJO1gsTCxN>

ISSUE

The major stress and conflict between Renata's caregiving responsibilities and her job duties might suggest that she was pushed out of her job. This is especially true because her time away from work lined up with her daughter's hospital stay.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Constructive Discharge' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What evidence is required to prove constructive discharge due to the conflict between caregiving responsibilities and job obligations?

CONCLUSION

No elements defined

| Challenge to Attendance Policy Enforcement

Claim Type: discovered | **Confidence:** 70%

ISSUE

The reason for her absences, which is her daughter's hospitalization (being in the hospital for medical treatment), supports a case for understanding under the policy (rules governing the situation), especially considering her work history and previous verbal coaching (informal guidance given to improve her performance).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Disability Discrimination

Claim Type: discovered | **Confidence:** 40%

ISSUE

Given Zofia's medical condition, Renata's absence might be protected by laws related to disabilities (legal rules that help people with disabilities). Not accommodating her situation could result in legal consequences (negative legal results).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Disability Discrimination' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What must be demonstrated to show that the employer failed to accommodate Renata's caregiving responsibilities under disability-related laws?

CONCLUSION

No elements defined

| **Failure to Maintain Employment Records**

Claim Type: discovered | **Confidence:** 40%

ISSUE

Keeping accurate records of attendance is very important when making appeals and claims about wrongful termination (being fired unfairly) and benefits eligibility (who can receive certain benefits). Inconsistent record-keeping (failures to keep reliable records) can be a major issue in these situations.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Maintain Employment Records' has not been explored with fact mappings

CONCLUSION

No elements defined

| **Potential Retaliation for Exercising Employee Rights**

Claim Type: discovered | **Confidence:** 40%

ISSUE

The timing of Renata's firing in connection with her time off for her child's medical care might support a claim of retaliatory discharge (being fired for standing up for your rights) if she had previously claimed rights under important employment laws.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Retaliation for Family Medical Leave

Claim Type: discovered | **Confidence:** 40%

ISSUE

Since Renata had to take care of her daughter during a medical emergency, the timing of her dismissal (firing) could be seen as retaliatory (punishing her) if the employer knew about her situation.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Family Medical Leave' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Unemployment Benefits Appeal Process**: 40% confidence
- **Potential for Wrongful Termination Claim Based on Caregiver Status**: 30% confidence

Minnesota

Wrongful Termination

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RDJYLQ3woaBs6FkT7wMbb4U>

ISSUE

The situation surrounding Renata's firing, particularly the timing of her daughter's serious health issue and how she informed her employer about each time she was absent, suggests that she might have been wrongfully terminated (fired in a way that is illegal) because her absences were linked to taking care of her sick daughter.

RULE

No authorities identified for this claim.

APPLICATION

- **Causation:** Unsupported - The claimant must show that the protected activity (i.e., caring for a sick child) was a substantial motivating factor in the termination.
- **Termination of Employment:** Supported (85% confidence) - The claimant must have been terminated from their position.
 - Fact: Cedarbrook Care Center fired Renata on May 15 for attendance. (85% match)
 - Fact: Renata Sikorski's termination is due to a pattern of absenteeism in violation of the Attendance Policy. (85% match)
 - Fact: Renata worked there for almost 6 years. (85% match)
- **Employment Relationship:** Supported (85% confidence) - The claimant must have been employed by the defendant.
 - Fact: Renata worked there for almost 6 years. (85% match)
 - Fact: Renata was a CNA at Cedarbrook Care Center. (85% match)
- **Discriminatory Motive:** Supported (85% confidence) - The termination must have been based on an unlawful reason (e.g., discrimination due to family responsibilities).
 - Fact: The narrator is a mother whose child almost died. (76% match)
 - Fact: Renata received a verbal coaching on May 5, 2026 regarding attendance expectations. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Causation' is not yet supported by any facts
 - Element: Causation

- **Procedural Requirement** (Priority 50): What specific legal standard must be met to demonstrate wrongful termination related to absences for caregiving duties?

CONCLUSION

3 of 4 elements supported (64% confidence)

| Civil Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Wrongful Termination

ISSUE

Found through FOLIO ontology traversal from Wrongful Termination (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Employment Claims

Claim Type: discovered | **Confidence:** 40%

Related to: Wrongful Termination

FOLIO IRI: <https://folio.openlegalstandard.org/RCty0MaQzrLC9KnzjM7nMER>

ISSUE

Found through FOLIO ontology traversal from Wrongful Termination (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Appeal Rights and Procedures

Claim Type: discovered | **Confidence:** 40%

ISSUE

Renata did not attend the HR (Human Resources) appeal about her firing because of personal reasons. This situation brings up the question of whether she can still challenge her termination even though she missed the deadline for the initial appeal.

RULE

No authorities identified for this claim.

APPLICATION

- **Right to Appeal:** Supported (85% confidence) - The individual must have a right to appeal the termination through the employer's HR procedures.
 - Fact: Renata was informed she could appeal through HR within 10 business days after being fired. (85% match)
- **Deadline for Appeal:** Supported (85% confidence) - There is a specified time limit within which the appeal must be filed.
 - Fact: Renata did not appeal in time because Zofia had a rough week. (85% match)
- **Grounds for Extending Deadline:** Supported (85% confidence) - Circumstances may exist that could justify an extension of the appeal deadline, such as undue hardship.
 - Fact: Four occurrences of absenteeism within a rolling 90-day period results in termination under the Attendance Policy. (81% match)
 - Fact: Renata has not logged in for a month. (81% match)
 - Fact: Renata did not appeal in time because Zofia had a rough week. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Is there a potential option for filing a delayed appeal after missing the HR appeal, and what are the required steps?

CONCLUSION

3 of 3 elements supported (85% confidence)

| Family Medical Leave Act Compliance

Claim Type: discovered | **Confidence:** 40%

ISSUE

Considering Zofia's medical condition and Renata's position as her caregiver, there might be reasons to investigate if her employer broke any rules related to family medical leave laws due to Renata's absences.

RULE

No authorities identified for this claim.

APPLICATION

- **Request for Leave:** Unsupported - The claimant must have formally requested leave in accordance with applicable policies or laws.
- **Employer's Awareness:** Supported (85% confidence) - The employer must have been aware or reasonably should have been aware of the need for leave.
 - Fact: Zofia Sikorski's mother notified her employer of each absence related to the admission and the visit. (85% match)
 - Fact: Renata called the charge nurse line every time before her shift. (85% match)
 - Fact: Zofia was in the hospital at Children's from May 4 to May 6. (85% match)
- **Qualifying Family Member:** Supported (85% confidence) - The claimant must have a family member with a serious health condition.
 - Fact: Renata's daughter Zofia is 9 years old. (85% match)
 - Fact: Zofia has type 1 diabetes. (85% match)

- **Notification of Need for Leave:** Supported (85% confidence) - The claimant must have notified the employer of the need for leave related to the family member's health issue.
 - Fact: The narrator is asking how to fight against the employer's claims. (79% match)
 - Fact: Zofia went into DKA from May 4 to May 6. (85% match)
 - Fact: Zofia was in the hospital at Children's from May 4 to May 6. (85% match)
 - Fact: Zofia Sikorski's mother notified her employer of each absence related to the admission and the visit. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Request for Leave' is not yet supported by any facts
 - Element: Request for Leave
- **Procedural Requirement** (Priority 50): What documentation or notice must be provided to support a claim under the Family Medical Leave Act given the circumstances of caregiving?

CONCLUSION

3 of 4 elements supported (64% confidence)

| Unemployment Benefits Eligibility

Claim Type: identified | **Confidence:** 40%

ISSUE

Renata got a letter saying she cannot receive unemployment benefits because she was let go from her job for misconduct, which means she frequently skipped work without a good reason.

RULE

No authorities identified for this claim.

APPLICATION

- **Discharge from Employment:** Supported (85% confidence) -
The applicant must have been discharged from their job.
 - Fact: Renata Sikorski's termination is due to a pattern of absenteeism in violation of the Attendance Policy. (85% match)
 - Fact: Renata missed an unscheduled absence on May 11, 2026. (85% match)
 - Fact: Cedarbrook Care Center fired Renata on May 15 for attendance. (85% match)
 - Fact: Renata missed an unscheduled absence on March 30, 2026. (85% match)
 - Fact: Renata missed an unscheduled absence on May 4, 2026. (85% match)
 - Fact: Renata missed an unscheduled absence on May 6, 2026. (85% match)
 - Fact: Renata's final paycheck will include accrued PTO. (85% match)
 - Fact: Renata was a CNA at Cedarbrook Care Center. (85% match)
 - Fact: Renata Sikorski's employment with Cedarbrook Care Center is terminated effective May 15, 2026. (85% match)
 - Fact: Cedarbrook Care Center's letter counts an additional day in March that Renata worked. (85% match)
 - Fact: Renata's coworker Delores can verify that Renata worked the day counted in March. (85% match)

- **Reason for Discharge:** Supported (85% confidence) - The discharge must have been for employment misconduct, such as excessive absenteeism.
 - Fact: Renata Sikorski's termination is due to a pattern of absenteeism in violation of the Attendance Policy. (85% match)
 - Fact: Four occurrences of absenteeism within a rolling 90-day period results in termination under the Attendance Policy. (85% match)
 - Fact: The letter states Renata was discharged for employment misconduct. (85% match)
 - Fact: Renata was discharged due to attendance issues. (85% match)
 - Fact: Cedarbrook Care Center fired Renata on May 15 for attendance. (85% match)
 - Fact: Renata missed 3 days in May. (85% match)
- **Ineligibility Criteria:** Supported (85% confidence) - The law prohibits eligibility for unemployment benefits if the discharge was due to misconduct.
 - Fact: Renata received a determination letter stating she is INELIGIBLE for unemployment. (85% match)
 - Fact: Renata Sikorski is ineligible for unemployment benefits beginning May 17, 2026. (85% match)
 - Fact: Minnesota law provides that an applicant who was discharged from employment because of employment misconduct is ineligible for unemployment benefits. (78% match)
 - Fact: Renata's determination letter is dated May 29. (85% match)
 - Fact: Four occurrences of absenteeism within a rolling 90-day period results in termination under the Attendance Policy. (85% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the deadline for appealing the determination of unemployment benefits eligibility after the discharge due to misconduct?

CONCLUSION

3 of 3 elements supported (85% confidence)

Triage & Routing Recommendations

Primary Practice Area: Employment

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. Employment (Score: 0.49)

Employment practice area (55% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	55%
Jurisdiction Match	64%
Complexity Score	20%

2. General Civil (Score: 0.39)

General Civil practice area (27% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	27%
Jurisdiction Match	64%
Complexity Score	20%

3. Family Law (Score: 0.36)

Family Law practice area (18% of claims); mixed jurisdictions (64% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	18%
Jurisdiction Match	64%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Causation' is not yet supported by any facts
 - **Claim:** Wrongful Termination
 - **Element:** Causation
- [] **[HELPFUL]** Element 'Request for Leave' is not yet supported by any facts
 - **Claim:** Family Medical Leave Act Compliance
 - **Element:** Request for Leave

Follow-up Steps

- [] **[URGENT]** Confirm the deadline for: Renata received a determination letter stating she is INELIGIBLE for unemployment. (estimated 2026-07-13; Minn. Stat. § 268.101, subd. 2, and § 268.105 (appeal of a determination of ineligibility to an unemployment-law judge must be filed within 45 calendar days of the date the determination was SENT; the period runs from sending and generally cannot be extended).). Your unemployment denial can be appealed to a state unemployment-law judge — and this is separate from any employer/HR appeal. You generally have 45 calendar days from the date the determination was SENT to file (Minn. Stat. § 268.101, subd. 2; § 268.105). This clock runs from the mailing date and usually cannot be extended, so file the appeal right away. Estimated — confirm the exact date with the court or a lawyer.
 - **Deadline:** 2026-07-13
- [] **[URGENT]** You were denied unemployment for 'misconduct' over attendance — but you missed work to care for your child during a medical emergency and you called in every time. Minnesota law says an absence WITH PROPER NOTICE to care for a sick immediate family member is NOT misconduct (Minn. Stat. § 268.095, subd. 6(b)). This is likely your winning argument on appeal. Do you have proof you called in before each shift, and the hospital records? [Authority: Minn. Stat. § 268.095, subd. 6(b) (absence with proper notice to care for the illness/injury of an immediate family member is NOT employment misconduct)]
- [] **[URGENT]** You said you stopped submitting the weekly online request after the denial. That is urgent: in Minnesota you can only be paid for weeks you actually request, even while your appeal is pending (Minn. Stat. § 268.085, subd. 1). Weeks you skip may be lost for good. Can you resume the weekly requests right away? [Authority: Minn. Stat. § 268.085, subd. 1 (benefits are payable

only for weeks for which a continued/weekly benefit request was actually submitted)]

- [] **[URGENT]** You worried that missing the employer's internal 10-day HR appeal means you lost everything. It does not: the employer's HR appeal and the STATE unemployment appeal are completely separate, and only the state appeal deadline controls your benefits (Minn. Stat. § 268.105). Missing the HR one does not forfeit your unemployment rights. Have you filed the STATE appeal yet? [Authority: Minn. Stat. § 268.105 (the state unemployment appeal is independent of any employer/HR internal appeal process)]
- [] **[IMPORTANT]** Potential claim 'Wrongful Discharge in Violation of Public Policy' has not been explored with fact mappings
 - **Claim:** Wrongful Discharge in Violation of Public Policy
- [] **[IMPORTANT]** Potential claim 'Constructive Discharge' has not been explored with fact mappings
 - **Claim:** Constructive Discharge
- [] **[IMPORTANT]** Potential claim 'Employment Claims' has not been explored with fact mappings
 - **Claim:** Employment Claims
- [] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
 - **Claim:** Civil Claims
- [] **[IMPORTANT]** Potential claim 'Disability Discrimination' has not been explored with fact mappings
 - **Claim:** Disability Discrimination
- [] **[IMPORTANT]** Potential claim 'Retaliation for Family Medical Leave' has not been explored with fact mappings
 - **Claim:** Retaliation for Family Medical Leave

- [] **[IMPORTANT]** Potential claim 'Failure to Maintain Employment Records' has not been explored with fact mappings
 - **Claim:** Failure to Maintain Employment Records
- [] **[IMPORTANT]** What is the deadline for appealing the determination of unemployment benefits eligibility after the discharge due to misconduct?
 - **Claim:** Unemployment Benefits Eligibility
- [] **[IMPORTANT]** What specific legal standard must be met to demonstrate wrongful termination related to absences for caregiving duties?
 - **Claim:** Wrongful Termination
- [] **[IMPORTANT]** Is there a potential option for filing a delayed appeal after missing the HR appeal, and what are the required steps?
 - **Claim:** Appeal Rights and Procedures
- [] **[IMPORTANT]** What documentation or notice must be provided to support a claim under the Family Medical Leave Act given the circumstances of caregiving?
 - **Claim:** Family Medical Leave Act Compliance
- [] **[IMPORTANT]** What are the necessary elements to establish a claim for wrongful discharge based on public policy protections related to caregiving?
 - **Claim:** Wrongful Discharge in Violation of Public Policy
- [] **[IMPORTANT]** What evidence is required to prove constructive discharge due to the conflict between caregiving responsibilities and job obligations?
 - **Claim:** Constructive Discharge

- [] **[IMPORTANT]** What must be demonstrated to show that the employer failed to accommodate Renata's caregiving responsibilities under disability-related laws?
 - **Claim:** Disability Discrimination

Gap Report Appendix

Overall Completeness: 76%

[===== - - - - -] 75%

Appeal Rights and Procedures

- **Procedural Requirement** (Priority 50): Is there a potential option for filing a delayed appeal after missing the HR appeal, and what are the required steps?
 - See Action Item #15

Civil Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Claims' has not been explored with fact mappings
 - See Action Item #9

Constructive Discharge

- **Unexplored Claim** (Priority 50): Potential claim 'Constructive Discharge' has not been explored with fact mappings
 - See Action Item #7
- **Procedural Requirement** (Priority 50): What evidence is required to prove constructive discharge due to the conflict between caregiving responsibilities and job obligations?
 - See Action Item #18

Disability Discrimination

- **Unexplored Claim** (Priority 50): Potential claim 'Disability Discrimination' has not been explored with fact mappings
 - See Action Item #10
- **Procedural Requirement** (Priority 50): What must be demonstrated to show that the employer failed to accommodate Renata's caregiving responsibilities under disability-related laws?
 - See Action Item #19

Employment Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Employment Claims' has not been explored with fact mappings
 - See Action Item #8

Failure to Maintain Employment Records

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Maintain Employment Records' has not been explored with fact mappings
 - See Action Item #12

Family Medical Leave Act Compliance

- **Unsupported Element** (Priority 40): Element 'Request for Leave' is not yet supported by any facts
 - Element: Request for Leave
 - See Action Item #20
- **Procedural Requirement** (Priority 50): What documentation or notice must be provided to support a claim under the Family Medical Leave Act given the circumstances of caregiving?
 - See Action Item #16

Retaliation for Family Medical Leave

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Family Medical Leave' has not been explored with fact mappings
 - See Action Item #11

Uncategorized

- **Procedural Requirement** (Priority 90): You were denied unemployment for 'misconduct' over attendance — but you missed work to care for your child during a medical emergency and you called in every time. Minnesota law says an absence WITH PROPER NOTICE to care for a sick immediate family member is NOT misconduct (Minn. Stat. § 268.095, subd. 6(b)). This is likely your winning argument on appeal. Do you have proof you called in before each shift, and the hospital records? [Authority: Minn. Stat. § 268.095, subd. 6(b) (absence with proper notice to care for the illness/injury of an immediate family member is NOT employment misconduct)]
 - See Action Item #3
- **Procedural Requirement** (Priority 88): You said you stopped submitting the weekly online request after the denial. That is urgent: in Minnesota you can only be paid for weeks you actually request, even while your appeal is pending (Minn. Stat. § 268.085, subd. 1). Weeks you skip may be lost for good. Can you resume the weekly requests right away? [Authority: Minn. Stat. § 268.085, subd. 1 (benefits are payable only for weeks for which a continued/weekly benefit request was actually submitted)]
 - See Action Item #4
- **Procedural Requirement** (Priority 84): You worried that missing the employer's internal 10-day HR appeal means you lost everything. It does not: the employer's HR appeal and the STATE unemployment appeal are completely separate, and only the state appeal deadline controls your benefits (Minn. Stat. § 268.105).

Missing the HR one does not forfeit your unemployment rights. Have you filed the STATE appeal yet? [Authority: Minn. Stat. § 268.105 (the state unemployment appeal is independent of any employer/HR internal appeal process)]

- See Action Item #5

Unemployment Benefits Eligibility

- **Procedural Requirement** (Priority 50): What is the deadline for appealing the determination of unemployment benefits eligibility after the discharge due to misconduct?
 - See Action Item #13

Wrongful Discharge in Violation of Public Policy

- **Unexplored Claim** (Priority 50): Potential claim 'Wrongful Discharge in Violation of Public Policy' has not been explored with fact mappings
 - See Action Item #6
- **Procedural Requirement** (Priority 50): What are the necessary elements to establish a claim for wrongful discharge based on public policy protections related to caregiving?
 - See Action Item #17

Wrongful Termination

- **Unsupported Element** (Priority 85): Element 'Causation' is not yet supported by any facts
 - Element: Causation
 - See Action Item #1
- **Procedural Requirement** (Priority 50): What specific legal standard must be met to demonstrate wrongful termination related to absences for caregiving duties?
 - See Action Item #14

Open Questions

1. Do you have any records showing that you called in before each shift when you missed work?
2. Can you quickly start submitting the weekly requests for your unemployment benefits again?
3. Have you filed the state appeal for your unemployment benefits yet?
4. Can you describe your employment situation? How long did you work for this employer, and what was your job?
5. What specific reasons did your employer provide for your dismissal?
6. Have you considered that you might have been fired for taking care of your child?
7. Can you share any details about your company's policies on attendance and how they relate to family medical emergencies?
8. Do you know the deadline for appealing the decision on your unemployment benefits?
9. What documents do you have that show you were taking care of your child during the times you missed work?
10. Can you describe the specific events that led to your termination, especially regarding your absences for caregiving?
11. Have you faced any consequences at work for caring for a family member that you believe were unfair or not justified?
12. Did your employer give you the option to resign or leave your job due to the caregiving conflicts, or was it clear that your only option was to be terminated?
13. Aside from your absence for caregiving, have there been other issues or reasons that you feel contributed to your termination?
14. Do you have any documentation showing that you informed your employer about your absences for caregiving, like call logs or messages?

15. Can you gather any records that demonstrate your efforts to submit requests for unemployment benefits during the appeal process?
16. Have you received any official notices or communications from your employer or the state regarding your employment or unemployment status?
17. What steps did you take to resolve any conflicts between your caregiving responsibilities and your job? Did you request any accommodations?
18. Are you aware of the time limits for appealing your unemployment benefits determination after your termination?
19. What information do you need to ensure you meet requirements for filing a delayed appeal?
20. What challenges or obstacles have you encountered regarding the appeal process or understanding your rights?